TENTATIVE RULING FOR March 2, 2026
Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (https://www.sb-court.org) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).
If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2419120

LORENZO SOLIS v. GENERAL MOTORS LLC

TENTATIVE RULING

This is a lemon law case. On June 12, 2024, Plaintiff Lorenzo Solis filed a Complaint against Defendant General Motors LLC, alleging the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act Section 1793.2.

The Complaint alleges that on August 22, 2023, Plaintiff purchased a 2019 Chevrolet Silverado ("Subject Vehicle") that was accompanied by express warranties. However, the Subject Vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to: electrical, emission, engine, suspension, and transmission system defects. Plaintiff presented the Vehicle for repairs beginning in June 2023, but GM's authorized repair facilities were unable to fix it. (Compl. ¶¶ 8-15, 28-29.)

On July 16, 2024, GM filed an Answer to Plaintiff's Complaint.

On November 18, 2025, GM filed a Motion for Summary Judgment, or in the Alternative, Summary Adjudication, on each cause of action asserted in the Complaint. On February 13, 2026, Plaintiff filed an opposition. On February 19, 2026, GM filed a reply.

Request for Judicial Notice

In opposition, Plaintiff requests the Court to take judicial notice of various trial court opinions as follows:

- Exhibit 1 - Tentative Ruling on a Motion for Summary Judgment/Adjudication filed in *Dustin A Brazil vs. General Motors LLC,* on December 9, 2025, in Sacramento Superior Court, Case No. 2022-00327023-CU-BC-GDS; and

- Exhibit 2 – Minute Order on a Motion for Summary Judgment/Adjudication filed in *Peter Jr. Arafiles vs. General Motors LLC*, on July 31, 2025, in Sacramento Superior Court, Case No. 34-2022-00325993-CU-BC-GDS.

The Court denies Plaintiff's RJN as to Exhibits 1 and 2. It appears that Plaintiff has submitted other trial court opinions as legal precedent, but trial court orders generally do not have precedential value. (Cal. Rules of Court, rule 8.1115(a); See also *Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148; *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761*; City of Bakersfield v. West Park Home Owners Assn. & Friends* (2016) 4 Cal.App.5th 1199, 1210 ["Accordingly, we will neither rely upon, nor take judicial notice of, these orders"].)

Statement of Law

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

A party may move for summary adjudication of causes of action, affirmative defenses, damages, or issues of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) A summary adjudication motion is subject to the same rules and procedures as a summary judgment motion. (Code Civ. Proc., § 437c, subd. (f)(2); *Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

When the defendant is the moving party, the analysis requires (1) identifying the issues framed by the pleadings, (2) determining whether the moving party's showing has established facts that negate the opponent's claim and justify a judgment in the movant's favor, and (3) determining whether the opposition demonstrates the existence of a triable, material factual issue. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1662.) A defendant must establish no material facts are in dispute by showing "one or more elements of the cause of action … cannot be established, or that there is a complete defense to that cause of action." (*Aguilar, supra*, 25 Cal.4th at p. 850.) Once that burden is met, the plaintiff must produce admissible evidence showing a triable issue of material facts exists. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar, supra,* 25 Cal.4th at pp. 849-51.)

Analysis

Despite filing an opposition, Plaintiff has failed to file an opposing separate statement. Opposition papers must include a separate statement responding to each of the material facts the moving party contends to be undisputed, and identifying any other material facts the opposing party contends are disputed. Each material fact must be followed by a reference to supporting evidence. (Code Civ. Proc., § 437c subd. (b)(3); Cal. Rules of Court, rule 3.1350(e)(2); *Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 115, disapproved on other grounds by *Kaufman & Broad Communities, Inc. v. Performance Plastering*

Inc. (2005) 133 Cal.App.4th 26, 41-42 [holding that "[w]ithout a separate statement of undisputed facts with references to supporting evidence … it is impossible … to demonstrate the existence of disputed facts"].)

When a moving party makes the required prima facie showing, the opposing party's failure to comply with this requirement may in the court's discretion, constitute a sufficient ground for granting the motion. (Code Civ. Proc., § 437c, subd. (b)(3); see *Batarse v. Service Employees Int'l Union Local 1000* (2012) 209 Cal.App.4th 820, 831-833.)

However, the court may not grant the motion unless it first determines that the moving party has met its initial burden of proof. (*Thatcher v. Lucky Stores, Inc*. (2000) 79 Cal.App.4th 1081, 1085-1086 [also invalidating local rule that purported to authorize summary judgment based solely on failure to file a separate statement].)

Plaintiffs do not present any evidence in support to the contrary to each UF. Thus, each of GM's UFs are deemed to be undisputed.

First and Third Cause of Action for Breach of Express Warranty under the Song-Beverly Act under Civil Code section 1793.2

The Song Beverly Consumer Warranty Act ("Song Beverly Act") covers consumer goods. Consumer goods are any new product or part thereof that is bought, used, or leased primarily for personal, family, or household purposes. (Civ. Code, § 1791, subd. (a).) The Song Beverly Act only covers new products unless otherwise explicitly stated otherwise. (*Leber v. DKD of Davis, Inc.* (2015) 237 Cal.App.4th 402, 407.) A "new vehicle" means, in addition to the general definition, a "dealer-owned vehicle and 'demonstrator' or other motor vehicle "sold with a manufacturer's new car warranty." (Civ. Code, § 1793.22, subd. (e)(2).)

A manufacturer expressly warrants a consumer good if it issues a written statement agreeing to undertake to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure. (Civ. Code, § 1791.2, subd. (a)(1).) If a manufacturer issues an express warranty, then it agrees it will maintain within California sufficient service and repair facilities reasonably close to where the consumer good is sold to carry out the terms of the warranty, its authorized repair facilities will commence repairs within a reasonable time, and the consumer good will be repaired so to conform with its warranties within 30 days. (Civ. Code, § 1793.2, subds. (a)(1)(A), (b).)

Concerning new vehicles, if a manufacturer is unable to service or repair the new vehicle to conform to applicable express warranties after a reasonable number of attempts, it must promptly replace the new vehicle or make restitution. (Civ. Code, § 1793.2, subd. (d)(2).) To establish a claim under this provision, the plaintiff must show: (1) the plaintiff bought or leased a new motor vehicle from the defendant, (2) the defendant gave the plaintiff an express warranty, (3) the vehicle had a defect that was covered by the warranty and that substantially impaired its use, value, or safety to a reasonable person in the plaintiff's situation, (4) the plaintiff delivered the vehicle to the defendant or its authorized repair facility for repair, (5) the defendant or its repair facility failed to repair the vehicle to match the written warranty after a reasonable number of opportunities to do so, and (6) the defendant did not promptly replace or buy back the vehicle. (*Oregel v. American Isuzu Motors, Inc*. (2001) 90 Cal.App.4th 1094, 1101; CACI 3201.)

GM argues that it cannot be liable under the first and third causes of action because Plaintiff did not purchase or lease a new motor vehicle from it.

Here, in August 22, 2023, Plaintiff purchased the Subject Vehicle, a 2019 Chevrolet Silverado, with 51,315 miles on the odometer from Diamond Chevrolet of San Bernardino ("Diamond Chevrolet"). (UFs # 1-2.) GM was not a party to the transaction between Plaintiff and Diamond Chevrolet. (UF # 3.)

The Subject Vehicle was originally delivered by Paso Robles Chevrolet to its original owner(s) on October 11, 2019, with 126 miles on its odometer. (UF # 4.) In connection with the transaction concerning the delivery of the Subject Vehicle to the original owner(s), GM issued a New Vehicle Limited Warranty (the "Warranty") with (i) bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and (ii) powertrain coverage for the earlier of 60 months or 60,000 miles. (UF # 5.)

However, GM did not issue any new or additional warranty coverage to the Plaintiff or for the Subject Vehicle when Plaintiff purchased the Subject Vehicle; instead, the Plaintiff received only the balance of coverage remaining under the Warranty that GM had issued when the Subject Vehicle was originally delivered. (UF # 6.)

In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*), the plaintiffs purchased a two-year-old truck with over 55,000 miles on it, but with an unexpired manufacturer's new car warranty. (*Id*. at p. 196.) The plaintiffs then brought suit under the Song-Beverly Act and the trial court granted summary judgment in favor of the manufacturer on the grounds that the vehicle was not a "new motor vehicle" for purposes of the Act. (*Ibid*.) The Court of Appeal and the California Supreme Court affirmed. (*Id*. at pp. 196, 206.) The California Supreme Court concluded that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (*Id.* at p. 196.)

Just like in *Rodriguez*, here, in this Action, Plaintiff also did not purchase the Subject Vehicle as a "new motor vehicle." However, the *Rodriguez* Court further noted that "[f]or new products, liability extends to the manufacturer; for used products, liability extends to the *distributor or retail seller* and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (*Rodriguez, supra*, 17 Cal.5th at p. 202 [emphasis added].) The Song-Beverly Act defines "distributor" as "any individual, partnership, corporation, association, or other legal relationship that stands between the manufacturer and the retail seller in purchases, consignments, or contracts for sale of consumer goods." (Civ. Code, §1791, subd. (e).) This definition does not require the distributor have a direct relationship with the ultimate consumer.

Notably, the court of appeal in *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340, indicated that "[n]othing about the text of section 1795.5 suggests that where a manufacturer acts in the capacity of a retailer, it is exempt from the Song-Beverly Act." Thus, it appears plausible that GM in this case could have served as a distributor or as the distributor and manufacturer simultaneously, depending on the levels of distribution involved in this case. The Complaint also alleges that GM was, in fact, the manufacturer and/or the distributor under the Act. (See Compl. at ¶ 19, 26.)

In the Moving Papers, GM argues that Plaintiff has no evidence supporting the allegation that GM was a distributor or retailer. However, GM's assertion that it is not a distributor or retailer is not advanced in GM's Separate Statement nor in any evidence submitted to the Court. Thus, GM has failed to demonstrate that it was not a "distributor" as defined by the Song Beverly Act. Merely because GM was the manufacturer does not, in and of itself, necessarily show that it was not also a distributor. Therefore, GM has failed to meet its initial burden of proof.

For this reason the court intends to deny without prejudice summary adjudication on the first and third causes of action.

Second Cause of Action for Breach of Implied Warranty under the Song-Beverly Act

In every contract for the sale of a consumer good, a warranty that the good is merchantable or fit for its ordinary purpose exists. (Civ. Code, § 1792; *Isip v. Mercedes-Benz USA, LLC* (2007) 155 Cal.App.4th 19, 26.) To prove a breach of the implied warranty, the following must be established: (a) the plaintiff bought a consumer good manufactured by the defendant, (b) at the time of the purchase the defendant was in the business of manufacturing the consumer good, (c) the consumer good was not fit for the ordinary purpose for which the good was used, (d) the plaintiff was harmed, and (e) the defendant's breach of the implied warranty was a substantial factor in causing the plaintiff's harm. (CACI 3210.)

The implied warranty applies to the sale of consumer goods. As noted above, a consumer good is any new product or part thereof. (Civ. Code, §§1791, subd. (a), 1793.22, subd. (e)(2).) As is the case with liability for breach of express warranties, 'in the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer,' unless the manufacturer issues a new warranty along with the sale of the used good." (*Rodriguez, supra*, 17 Cal.5th at p. 202, italics added [citing *Nunez v. FCA US, LLC* (2021) 61 Cal.App.5th 385, 399 (*Nunez*)].) Only distributors or sellers of used goods have implied warranty obligations in the sale of used goods. (*Nunez, supra*, at p. 399 (citing Civ. Code § 1795.5).)

Here, as discussed above, GM has failed to meet its initial burden demonstrating that it was not the distributor of the used Subject Vehicle. Accordingly, the Court intends to deny without prejudice summary adjudication on the second cause of action.

TENTATIVE RULING

(1) GM's Motion for Summary Adjudication as to the First Cause of Action for Breach of Express Warranty under the Song-Beverly Act is denied without prejudice. GM has failed to meet its threshold burden of proof demonstrating that it was not the distributor of the used Subject Vehicle as defined by the Song Beverly Act. [See UFs # 1-6 and evidence cited in support: Major Decl.; and Jensen Decl.];

(2) GM's Motion for Summary Adjudication as to the Second Cause of Action for Breach of Implied Warranty under the Song-Beverly Act is denied without prejudice. GM has failed to meet its threshold burden of proof demonstrating that it was not the distributor of the used Subject Vehicle as defined by the Song Beverly Act. [See UFs # 1-6 and evidence cited in support: Major Decl.; and Jensen Decl.];

(3) GM's Motion for Summary Adjudication as to the Third Cause of Action for Violation of Song-Beverly Act Section 1793.2 is denied without prejudice. GM has failed to meet its threshold burden of proof demonstrating that it was not the distributor of the used Subject Vehicle as defined by the Song Beverly Act. [See UFs # 1-6 and evidence cited in support: Major Decl.; and Jensen Decl.]; and

(4) In light of the Court denying summary adjudication to each of the causes of action at issue, GM's Motion for Summary Judgment is denied without prejudice.

TENTATIVE RULING FOR March 2, 2026
Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (https://www.sb-court.org) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).
If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2111992

CHAVEZ, et al. v. FORD MOTOR COMPANY, et al.

TENTATIVE RULING

This is a lemon law case brought pursuant to the Song-Beverly Consumer Warranty Act (the Act). On April 20, 2021, plaintiffs Gustavo Chavez and Ene Chavez (collectively, Plaintiffs) initiated the instant action against defendant Ford Motor Company (Ford or Defendant) and Sunrise Ford. On August 11, 2021, Plaintiffs filed a Request for Dismissal as to defendant Sunrise Ford without prejudice. The operative Complaint alleges six causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of express written warranty, (5) breach of implied warranty of merchantability, and (6) fraudulent inducement.

Plaintiffs allege on August 31, 2016, they entered into an agreement to purchase of a 2016 Ford F-250 (the Vehicle), which was manufactured and or distributed by the Defendant. Plaintiffs allege within the applicable express warranty period, nonconformities to the warranty manifested as to the Vehicle's engine, front shocks, steering dampener, brakes, etc. The instant action ensued.

On August 24, 2021, the court granted Ford's motion to compel arbitration.

On November 25, 2025, Plaintiffs filed the instant Motion for Reconsideration of the Court's August 24, 2021 Order Granting Defendant's Motion to Compel Arbitration Based on a Change of Law (Motion),

supported by a declaration Rabiya Tirmizi. Defendant filed its Opposition to the Motion (Opposition), supported by Jonathan Won. Plaintiffs filed their Reply on February 23, 2026.

Motion for Reconsideration

Code of Civil Procedure, section 1008, subdivision (e), states as follows:

> "This section specifies the court's jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and applies to all applications to reconsider any order of a judge or court, or for the renewal of a previous motion, whether the order deciding the previous matter or motion is interim or final. No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section."

Section 1008 governs motions for reconsideration, by parties or by the court itself. It is the exclusive means for modifying, amending, or revoking an order and the limitation is expressly jurisdictional. (*Morite of California v. Superior Ct*. (1993) 19 Cal.App.4th 485, 490.) However, more recent decisions have held that, based on the separation of powers doctrine, the procedural restrictions of section 1008 cannot deprive the trial court of jurisdiction to reconsider its own interim orders sua sponte. (*Kerns v. CSA Ins. Group* (2003) 106 Cal.App.4th 368.)

A motion for reconsideration must be (1) brought before the same judge that made the order, (2) made within 10 days after service upon the party of notice of entry of the order, and (3) be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. Additionally, the motion must be supported by a declaration identifying the previous order, identifying the judge that made the order, and identifying the new or different facts, circumstances, or law claimed to exist. (Code Civ. Proc., § 1008, subd. (a).) The moving party must offer the court some fact, law or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

Normally a motion for reconsideration must be presented to the same judge that originally issued the order. (Code Civ. Proc. § 1008, subd. (a).) In this instance, the judge that originally issued the order compelling arbitration is unavailable, and therefore this court may consider the motion. The scope of the reconsideration by a second judge is narrow. A judge may reverse another judge's prior ruling when the record shows it was based on inadvertence, mistake, or fraud; but mere disagreement with the other judge's ruling is not enough to overturn that ruling. (*Marriage of Oliverez* (2015) 238 Cal.App. 1242, 1248-1249). Here, the court is empowered to reconsider and vacate a ruling if said ruling requires correction due to a subsequent change in the law (CCP §1008(c)). "An appellate decision published during an action's pendency may be a change of law under section 1008, subdivision (c), and requires a trial court to reconsider its earlier ruling if the decision materially changed the law." (*State of California v. Superior Court (Flynn)* (2016) 4 Cal.App.5th 94, 100.) Accordingly, this court must determine whether there has been a material and controlling change in the law meriting relief, and cannot base its decision on a mere disagreement with the prior judge's reasoning or construction of facts.

Analysis

Plaintiffs motion under Civil Procedure Code section 1008(c) for the court to reconsider its August 24, 2021 order granting Defendant's motion to compel arbitration on the grounds that since the hearing, the California Supreme Court issued its ruling in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 (*Ford Motor Warranty Cases*) holding that non-signatory manufacturers cannot enforce arbitration provisions in

a purchase contract. Citing *Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237, Plaintiffs contend it is well-settled that a court may reverse an order compelling a matter to arbitration where a change in law affects whether the arbitral forum was a correct one. Plaintiffs cite to *Case v. Lazben Financial Co*. (2002) 99 Cal.App.4th 172, 179, for authority that the court has the inherent authority to reconsider its earlier ruling and its jurisdiction.

In its Opposition, Ford does not contest that there was a material change in law many months before arbitration was complete, but as Plaintiff elected to complete arbitration on November 3, 2025, and only filed their Motion after the arbitrator ruled in favor of Ford on November 10, 2025, Defendant argues the Motion should be denied due to the particular circumstances of the case, the doctrine of laches, equitable estoppel and waiver. Defendant contends Plaintiffs knew about the change in law under *Ford Motor Warranty Cases* yet elected to proceed with the full arbitration and wait for the arbitration decision before deciding that reconsideration was warranted due to the outcome. Defendant argues Plaintiffs seek to undo Ford's success in arbitration, only after receiving the adverse ruling.

Plaintiff replies, renewing its argument that the California Supreme Court's ruling in *Ford Motor Warranty Cases* applies here. Plaintiff further cites to *Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, for authority that the court cannot consider the status of an arbitration in making a decision.

"If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code Civ. Proc., § 1008, subd. (c).) Even without a change of law, a trial court may exercise its inherent jurisdiction to reconsider an interim ruling. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107–1109; *Blake v. Ecker* (2001) 93 Cal.App.4th 728.) Here, there is no dispute that there has been a change of law that warrants the court to reconsider its prior order based on the California Supreme Court's ruling in *Ford Motor Warranty Cases*, expressly disapproving of *Felisilda v. FCA US LLC* (2020) 53 Cal.App.5th 486.

Defendant correctly points out that among the factors the court may consider in exercising its discretion here is the extent of the preparation that has already occurred in the trial court proceedings, the proximity of a trial date, the materiality of the change that has been made and the potential for prejudice to any of the parties. (*Phillips v. Spring PCS* (2012) 209 Cal.App.4th 758, 769.) However, there has been no progression of the trial court proceeding, no trial date set and the change of law as it affects the present matter is substantial and dispositive as to enforcement of arbitration agreements. The only factor potentially weighing in Defendant's favor is prejudice against it. Defendant raises this prejudice in multiple ways, but in essence, Ford argues Plaintiffs delayed filing the instant Motion until after the arbitrator issued his decision. Ford contends it is prejudiced by the fact that it propounded written discovery and administered the plaintiffs' depositions during the pendency of the arbitration proceedings, and it will now be required to re-do discovery. Ford cites no authority that prohibits use at trial of sworn testimony (depositions) of opposing parties or responses under penalty of perjury to discovery obtained by Ford during the course of arbitration. Ford also contends that the arbitration process has exposed its defense strategies and given the plaintiffs an unfair advantage. However, the supporting declaration of Jonathan Won does not set forth any specific examples of strategies employed by Ford during subject arbitration that are not typically anticipated in a lemon law case.

The court finds the defendant's arguments unpersuasive. As raised by the Plaintiffs, review of an order compelling arbitration must await appeal from a final judgment entered after arbitration. (*Abramson v. Juniper Networks, Inc*. (2004) 115 Cal.App.4th 638, 648.) In the four months between the California Supreme Court's ruling in *Ford Motor Warranty Cases* and the filing of the instant Motion, it is unclear

what additional action to affirm their rights Ford expects Plaintiffs to have taken. Plaintiffs' options would have been limited to filing a petition for writ of mandate, filing a motion for reconsideration or waiting out the decision from the arbitrator.

TENTATIVE RULING

The Plaintiffs' request to reconsider and vacate the court's August 24, 2021 order compelling arbitration is granted. The arbitration, including any findings or rulings by the arbitrator, are hereby void. The case is restored to the civil unlimited jurisdiction calendar, and the matter shall be set for trial.